**Kenya Institute of Primate Research (KIPRE)**

# Institutional data protection governance and compliance implementation Strategy

**Retreat Concept note**

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## Introduction

KIPRE is a national biomedical research institution established over five decades ago and currently operates as a State Corporation under the Ministry of Health, Department of Public Health and Professional Standards (Legal Notice No. 273 of 2017 and Executive Order No. 2 of 2023).

In fulfilling its functions and mandate, the Institute generates, receives, analyses, stores, and shares large volumes of scientific, administrative, and personal data through its research, laboratory, surveillance, and institutional operations.

These data underpin research, service delivery, evidence-based decision-making, regulatory reporting, and collaboration with national and international partners.

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As KIPRE continues to expand its research portfolio and embrace digital transformation, effective governance of institutional data has become increasingly important.

Data are strategic institutional assets that support research excellence, innovation, evidence-based decision-making, regulatory compliance, and the protection of the Institute's research sovereignty.

To realize these benefits, data must be managed throughout their lifecycle in a manner that ensures they are accurate, secure, accessible, interoperable, and fit for their intended purpose.

Institutional data governance provides the policies, standards, processes, and accountability mechanisms necessary to ensure that data are managed consistently and responsibly across the Institute.

A robust data governance framework enhances the quality and integrity of research and administrative data, strengthens collaboration, improves operational efficiency, supports informed decision-making, and reduces legal, operational, and reputational risks associated with poor data management.

Data protection is a fundamental component of this broader governance framework. It ensures that personal and sensitive personal data are processed lawfully, fairly, transparently, and securely in accordance with the Data Protection Act, 2019 and its subsidiary regulations (i.e. Legal Notice No. 263,264,265 and African Union Convention on Cyber Security & Personal Data Protection Framework (Malabo Convention)).

By embedding data protection within institutional data governance, KIPRE will strengthen public trust, fulfil its statutory obligations, and establish a sustainable framework for responsible stewardship of institutional data.

## Background

KIPRE has successfully been registered by the Office of the Data Protection Commissioner (ODPC) as both a Data Controller and a Data Processor.

In addition, the Director General has endorsed the Institutional data Governance Development plan (IDGFDP) as well as appointing a Data Protection Officer (DPO) to coordinate and oversee compliance with the Data Protection Act, 2019 within the Institute.

These milestones represent an important step towards strengthening institutional data governance. However, registration and appointment alone do not guarantee compliance.

Effective implementation requires clear governance structures, updated policies, standard operating procedures (SOPs), defined roles and responsibilities, staff capacity building, and coordinated participation across all directorates, divisions, programs, and projects.

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Data protection is therefore an institutional responsibility that requires commitment from all functional areas of the Institute.

The next phase of implementation therefore requires KIPRE to establish the governance structures, implementation mechanisms, and institutional capacity necessary to operationalize compliance with the Data Protection Act, 2019.

The retreat will provide a platform for building institutional capacity, assessing the current state of compliance, reviewing existing governance instruments, identifying implementation priorities, and collaboratively developing the Institute's Data Protection Compliance Implementation Strategy and implementation work plan.

These outputs will provide the foundation for the data protection component of KIPRE's broader Institutional Data Governance Framework.

## Justification

The background highlighted the key milestones as far as data protection and governance are concerned.

It is also noted that these milestones only mark the beginning rather than the completion of the Institute's data protection journey.

Sustainable compliance requires institutional ownership, coordinated implementation, and the integration of data protection into routine activities and research processes across all functional areas of the Institute.

At present, KIPRE requires a structured approach to operationalize the requirements of the Data Protection Act, 2019 and its subsidiary regulations through appropriate governance arrangements, harmonized policies, SOPs, clearly defined roles and responsibilities, staff awareness, and mechanisms for monitoring and continuous improvement.

These elements cannot be developed effectively in isolation, as data protection responsibilities span research, product development, laboratory services, ICT, HR & Admin, procurement, finance, and other institutional functions.

The proposed retreat will provide a multidisciplinary platform for institutional stakeholders to collectively assess KIPRE's current level of compliance, identify implementation priorities, review existing governance instruments, and develop a shared roadmap for institutional implementation.

The participatory approach will promote ownership of the compliance program, strengthen coordination across directorates and divisions, and establish a common understanding of roles and responsibilities in implementing the Data Protection Act, 2019.

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The retreat will culminate in the development of a Data Protection Compliance Implementation Strategy and a costed implementation work plan that will guide institutional compliance in a coordinated and sustainable manner.

These outputs will constitute the data protection and regulatory compliance component of KIPRE's broader Institutional Data Governance Framework envisaged under the Data Science and Analytics (DSAS) Work Plan for FY 2026/27 (Appendix 1.1).

Consequently, the retreat will complement, rather than duplicate, the proposed technical consultancy by establishing the governance, compliance, and implementation arrangements (as envisaged in part II , phase I of the IDGFDP) necessary for the successful development and long-term sustainability of the Institutional Data Governance Framework.

## Purpose

The purpose of the retreat is to strengthen institutional data protection governance and establish a coordinated framework for implementing the Data Protection Act, 2019 as part of KIPRE's broader Institutional Data Governance Framework.

## Objectives

The specific objectives are to:

i. Strengthen institutional understanding of the Data Protection Act, 2019 and its practical implementation.
ii. Assess KIPRE's current data protection governance and compliance status.
iii. Review and harmonize KIPRE's Data Management and Protection Policy with the Data Protection Act, 2019 and current institutional governance arrangements.
iv. Develop institutional standard operating procedures, templates and compliance tools to support implementation.
v. Identify institutional risks, compliance gaps, priorities, and resource requirements.
vi. Establish a network of Data Protection Champions representing key functional areas of the Institute.
vii. Develop and validate the KIPRE Data Protection Compliance Implementation Strategy.
viii. Develop a costed implementation work plan with clear responsibilities and timelines.

## Proposed participants

The retreat will bring together representatives from:

1. Office of the Director General
2. Research Directorates and Programs
3. Human Resource and Administration
4. Information Communication Technology

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5. Finance
6. Procurement
7. Planning and Strategy
8. Internal Audit
9. Records Management / Registry
10. Corporate Communications
11. Monitoring and Evaluation
12. Legal (where applicable)
13. Laboratory Services
14. Data Protection Champions from each directorate or division

Resource persons will be invited from the Kenya School of Law, ODPC and/or other relevant institutions, subject to availability.

## Approaches

The retreat will be conducted through a combination of:

1. Presentations by resource persons.
2. Review of the Data Protection Act, 2019 and related regulations.
3. Policy review and harmonization.
4. Institutional compliance assessment.
5. Group discussions by functional area.
6. Plenary sessions.
7. Collaborative drafting of the implementation strategy.
8. Validation of proposed implementation activities and priorities.

## Expected outcomes

The retreat is expected to produce:

- A validated KIPRE Data Protection Compliance Implementation Strategy.
- A costed implementation work plan.
- A network of Data Protection Champions.
- An institutional data protection compliance gap assessment.
- A revised draft KIPRE Data Management and Protection Policy aligned with the Data Protection Act, 2019 and current institutional governance arrangements.
- Priority actions for strengthening institutional data protection governance.
- Enhanced staff capacity on data protection compliance.

## Duration and venue

The retreat is proposed to take place over eight (8) to ten (10) working days at a suitable venue. The duration is intended to provide adequate time for institutional compliance assessment, review of governance instruments, collaborative development of the Data Protection Compliance Implementation Strategy, preparation of a costed implementation work plan, and validation of the proposed outputs.

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## Budget

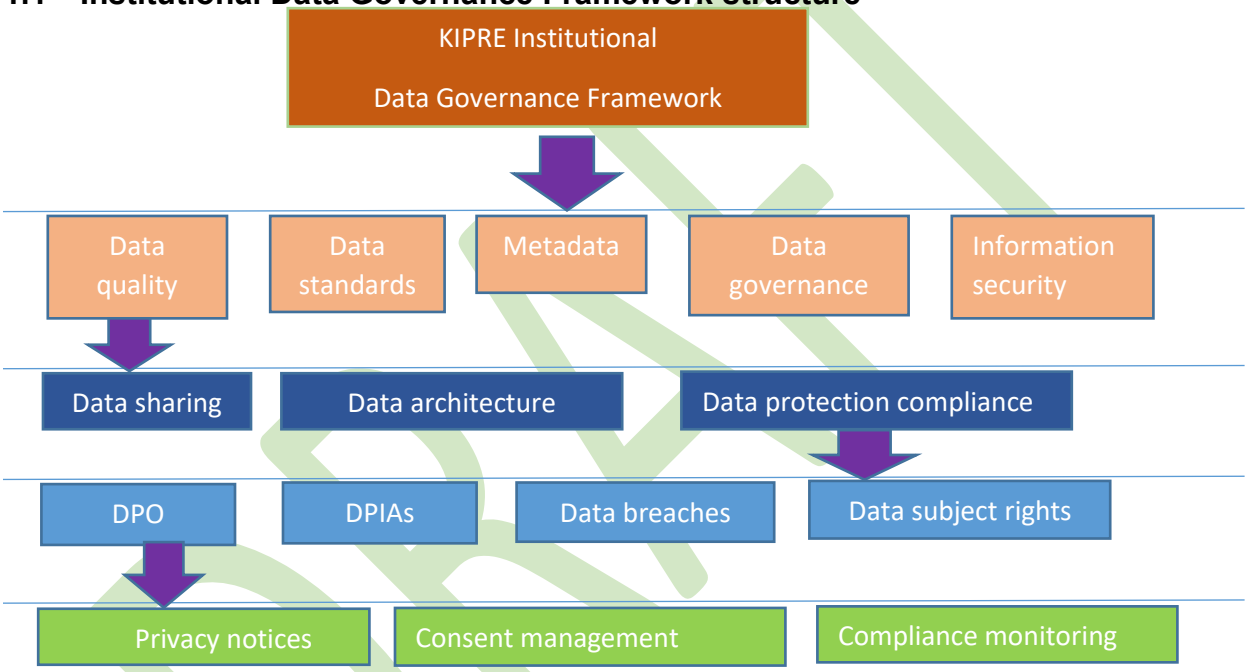
A detailed budget is provided separately to cover venue costs, accommodation, conference facilities, meals, transport, facilitation, stationery, printing of workshop materials, and other logistical requirements.

## Recommendation

Management is requested to approve the proposed retreat and facilitate the necessary resources to enable the development of KIPRE's Data Protection Compliance Implementation Strategy and strengthen institutional data protection governance.

## Appendices

### 1.1 Institutional Data Governance Framework structure




### 1.2 Implementation Roadmap (Sequentially)

- ✓ Current state
- ✓ Institutional compliance assessment
- ✓ Review and harmonization of the Data Management and Protection Policy
- ✓ Development of the Data Protection Compliance Implementation Strategy
- ✓ Development of the Costed Implementation Work Plan
- ✓ Management Approval
- ✓ Implementation
- ✓ Monitoring, Evaluation and Continuous Improvement

### 1.3 Data Governance Structure (Sequentially)

- ✓ Director General
- ✓ Data Protection Officer
- ✓ Data Protection Steering Committee
- ✓ Data Protection Champions

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- ✓ Directorates / Divisions / Projects

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